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January 3, 2025

Susan Lee
Coldwell Banker – Best Realty
4130 W Commonwealth Ave
Fullerton, CA 92833

Zac Kolander
Voit Real Estate Services
 2400 E Katella Ave, Ste 750
 Anaheim, CA 92806

VIA E-MAIL:
chrisd@voitco.com

Property: 2600 Michelson Dr, Ste 1450 – Irvine, CA
RE: Proposal to Sublease

Dear Chris:

On behalf of our client, Sidiz America, LLC, (hereinafter "Sublessee"), we have been authorized to submit the following sublease proposal representing the terms and conditions to sublease the "Premises" referenced below. **THIS IS NOT A BINDING AGREEMENT.**

Premises: 2600 Michelson Dr, Suite 1450, Irvine, CA 92612
 An approximate 4,582 rentable square-foot office suite which is part of a larger building.

Sublessee: Sidiz America, LLC, a Delaware Limited Liability Company

Sublease Commencement: February 1, 2024

Early Occupancy: Sublessee shall receive Early Possession upon receipt the following: (a) fully executed leases, (b) monies due under the lease, (c) certificate of liability insurance.

Term: Forty-eight (48) Months

Base Rate:	<u>Term</u>	<u>Monthly Base Rent (FSG)</u>
	Mos.: 1-12	\$6,873.00 (\$1.50 PSF)
	Mos.: 13-24	\$8,934.90 (\$1.95 PSF)
	Mos.: 25-36	\$10,309.50 (\$2.15 PSF)
	Mos.: 37-48	\$10,813.52 (\$2.36 PSF)

The office lease terms are based on FSG (Full Service Gross), which includes all utilities and services in the rental price.

All included items, such as electricity, heating and cooling, cleaning, maintenance, insurance, and common area maintenance fees, can be explicitly stated in the final agreement.

Operating Expenses: None.

Note: Internet and telephone services are not included.

Security Deposit: Sublessee shall submit a security deposit in the amount of \$7,000.00, subject to Sublessor's review of Sublessee's financials.

Building Condition: Sublessor shall deliver the premises free of debris on the commencement date and all electrical, HVAC, plumbing and lighting shall be in good operating condition.

The Sublessor warrants that the sublease does not violate the terms of the master lease agreement or any applicable laws. The Sublessor acknowledges and permits that the Sublessee may assign their contractual rights to another entity during the lease term.





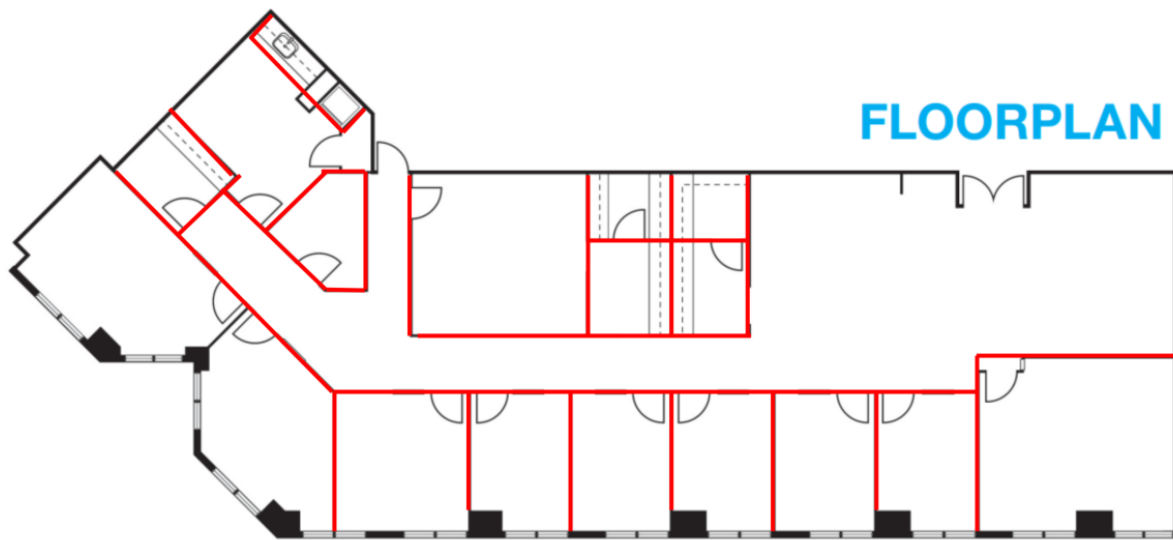
STAN S. KWAK
SELDEN MCKNIGHT
ZAC KOLANDER
JORDAN HAYNES

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Tenant Allowance:	Sublessor shall provide Sublessee an allowance in the amount of \$10,000.00.
Tenant Improvements:	Sublessee, at Sublessee's cost and expense, shall have permission to remove all office walls per Exhibit A to create one open area. Sublessee, at sublessee's cost and expense, shall have permission to carry out interior design, alteration, or improvements to premises after taking possession.
Parking:	Sublessee shall be provided onsite parking at a ratio of 4:1 at no additional charge.
Brokerage Representation:	Both parties acknowledge Coldwell Banker (Susan Lee) and Voit Real Estate Services (Zac Kolander / Stan Kwak) represents the Sublessee, and Voit Real Estate Services (Chris Drzyzga) represents the Sublessor in this transaction. Sublessor shall pay a real estate brokerage fee to Sublessee's broker equal to 4% of the total base rent lease consideration.
Proposal Expiration:	This proposal will become null and void if not accepted on or before <u>January 10, 2025.</u>

In Process

EXHIBIT A



DISCLAIMER:

This proposal is non-binding and is only intended to summarize the major lease terms in which both parties may consider transaction of a lease agreement. As a result, notwithstanding the execution of this lease proposal by both Landlord and Tenant, neither Landlord nor Tenant shall have any legal obligation or liability to the other with respect to the matters set forth in this lease proposal unless and until a mutually agreed upon lease document is fully executed and delivered by both parties. As such, the parties hereby acknowledge and agree that this lease proposal is non-binding and that any acts or omissions undertaken or any costs or expenses incurred by Landlord or Tenant following the execution of this lease proposal are made or incurred at such party's sole risk and expense.



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We look forward to your favorable response. Please call us at (714) 935-2301 should you have any questions.

Respectfully,

VOIT REAL ESTATE SERVICES – CLIENT RESOURCE GROUP

ZAC KOLANDER

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SELDEN MCKNIGHT

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STAN KWAK

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F: (714) 978-9431
E: skwak@voitco.com

AGREED AND ACCEPTED:

In Process

SUBLESSEE

Signature: _____

Date: _____

Name Printed: Jung Woo Choi

Title: CEO, Sidiz America LLC

SUBLESSOR

Signature: _____

Date: _____

Name Printed: _____

Title: _____



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DISCLOSURE REGARDING REAL ESTATE AGENCY RELATIONSHIP

(As required by the Civil Code)

When you enter into a discussion with a real estate agent regarding a real estate transaction, you should from the outset understand what type of agency relationship or representation you wish to have with the agent in the transaction.

SELLER'S AGENT ("Seller" includes both a vendor and a lessor)

A Seller's agent under a listing agreement with the Seller acts as the agent for the Seller only. A Seller's agent or a subagent of that agent has the following affirmative obligations:

To the Seller: A Fiduciary duty of utmost care, integrity, honesty and loyalty in dealings with the Seller. To the Buyer and the Seller:

- Diligent exercise of reasonable skill and care in performance of the agent's duties.
- A duty of honest and fair dealing and good faith.
- A duty to disclose all facts known to the agent materially affecting the value or desirability of the property that are not known to, or within the diligent attention and observation of, the parties. An agent is not obligated to reveal to either party any confidential information obtained from the other party that does not involve the affirmative duties set forth above.

BUYER'S AGENT ("Buyer" includes both a purchaser and a lessee).

A selling agent can, with a Buyer's consent, agree to act as agent for the Buyer only. In these situations, the agent is not the Seller's agent, even if by agreement the agent may receive compensation for services rendered, either in full or in part from the Seller. An agent acting only for a Buyer has the following affirmative obligations:

To the Buyer: A fiduciary duty of utmost care, integrity, honesty, and loyalty in dealings with the Buyer. To the Buyer and the Seller:

- Diligent exercise of reasonable skill and care in performance of the agent's duties.
- A duty of honest and fair dealing and good faith.
- A duty to disclose all facts known to the agent materially affecting the value or desirability of the property that are not known to, or within the diligent attention and observation of, the parties.

An agent is not obligated to reveal to either party any confidential information obtained from the other party that does not involve the affirmative duties set forth above.

AGENT REPRESENTING BOTH SELLER AND BUYER

A real estate agent, either acting directly or through one or more associate licensees, can legally be the agent of both the Seller and the Buyer in a transaction, but only with the knowledge and consent of both the Seller and the Buyer.

In a dual agency situation, the agent has the following affirmative obligations to both the Seller and the Buyer:

- A fiduciary duty of utmost care, integrity, honesty and loyalty in the dealings with either the Seller or the Buyer.
- Other duties to the Seller and the Buyer as stated above in their respective sections.

In representing both Seller and Buyer, the agent may not, without the express permission of the respective party, disclose to the other party that the Seller will accept a price less than the listing price or that the Buyer will pay a price greater than the price offered.

The above duties of the agent in a real estate transaction do not relieve a Seller or Buyer from the responsibility to protect his or her own interests. You should carefully read all agreements to assure that they adequately express your understanding of the transaction. A real estate agent is a person qualified to advise about real estate. If legal or tax advice is desired, consult a competent professional.

Throughout your real property transaction you may receive more than one disclosure form, depending upon the number of agents assisting in the transaction. The law requires each agent with whom you have more than a casual relationship to present you with this disclosure form. You should read its contents each time it is presented to you, considering the relationship between you and the real estate agent in your specific transaction. **This disclosure form includes the provisions of Sections 2079.13 to 2079.24, inclusive, of the Civil Code set forth on page 2. Read it carefully. I/WE ACKNOWLEDGE RECEIPT OF A COPY OF THIS DISCLOSURE AND THE PORTIONS OF THE CIVIL CODE PRINTED ON THE BACK (OR A SEPARATE PAGE).**

☐ Buyer ☐ Seller ☒ Lessor ☐ Lessee _____ Date: _____

☐ Buyer ☐ Seller ☐ Lessor ☐ Lessee _____ Date: _____

Broker: Voit Real Estate Services BRE Lic # 01991785

Real Estate Broker (Firm)

By: _____ BRE Lic # 02096759 Date: ____

Salesperson or Broker-Agent – Zac Kolander





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DISCLOSURE REGARDING REAL ESTATE AGENCY RELATIONSHIP CIVIL CODE SECTIONS 2079.13 THROUGH 2079.24 (2079.16 APPEARS ON THE FRONT)

2079.13 As used in Sections 2079.14 to 2079.24, inclusive, the following terms have the following meanings:

(a) “Agent” means a person acting under provisions of Title 9 (commencing with Section 2295) in a real property transaction, and includes a person who is licensed as a real estate broker under Chapter 3 (commencing with Section 10130) of Part 1 of Division 4 of the Business and Professions Code, and under whose license a listing is executed or an offer to purchase is obtained. **(b)** “Associate licensee” means a person who is licensed as a real estate broker or salesperson under Chapter 3 (commencing with Section 10130) of Part 1 of Division 4 of the Business and Professions Code and who is either licensed under a broker or has entered into a written contract with a broker to act as the broker’s agent in connection with acts requiring a real estate license and to function under the broker’s supervision in the capacity of an associate licensee. The agent in the real property transaction bears responsibility for his or her associate licensees who perform as agents of the agent. When an associate licensee owes a duty to any principal, or to any buyer or seller who is not a principal, in a real property transaction, that duty is equivalent to the duty owed to that party by the broker for whom the associate licensee functions. **(c)** “Buyer” means a transferee in a real property transaction, and includes a person who executes an offer to purchase real property from a seller through an agent, or who seeks the services of an agent in more than a casual, transitory, or preliminary manner, with the object of entering into a real property transaction. “Buyer” includes vendee or lessee. **(d)** “Commercial real property” means all real property in the state, except single-family residential real property, dwelling units made subject to Chapter 2 (commencing with Section 1940) of Title 5, mobile homes, as defined in Section 798.3, or recreational vehicles, as defined in Section 799.29. **(e)** “Dual agent” means an agent acting, either directly or through an associate licensee, as agent for both the seller and the buyer in a real property transaction. **(f)** “Listing agreement” means a contract between an owner of real property and an agent, by which the agent has been authorized to sell the real property or to find or obtain a buyer. **(g)** “Listing agent” means a person who has obtained a listing of real property to act as an agent for compensation. **(h)** “Listing price” is the amount expressed in dollars specified in the listing for which the seller is willing to sell the real property through the listing agent. **(i)** “Offering price” is the amount expressed in dollars specified in an offer to purchase for which the buyer is willing to buy the real property. **(j)** “Offer to purchase” means a written contract executed by a buyer acting through a selling agent that becomes the contract for the sale of the real property upon acceptance by the seller. **(k)** “Real property” means any estate specified by subdivision (1) or (2) of Section 761 in property that constitutes or is improved with one to four dwelling units, any commercial real property, any leasehold in these types of property exceeding one year’s duration, and mobile homes, when offered for sale or sold through an agent pursuant to the authority contained in Section 10131.6 of the Business and Professions Code. **(l)** “Real property transaction” means a transaction for the sale of real property in which an agent is employed by one or more of the principals to act in that transaction, and includes a listing or an offer to purchase. **(m)** “Sell,” “sale,” or “sold” refers to a transaction for the transfer of real property from the seller to the buyer, and includes exchanges of real property between the seller and buyer, transactions for the creation of a real property sales contract within the meaning of Section 2985, and transactions for the creation of a leasehold exceeding one year’s duration. **(n)** “Seller” means the transferor in a real property transaction, and includes an owner who lists real property with an agent, whether or not a transfer results, or who receives an offer to purchase real property of which he or she is the owner from an agent on behalf of another. “Seller” includes both a vendor and a lessor. **(o)** “Selling agent” means a listing agent who acts alone, or an agent who acts in cooperation with a listing agent, and who sells or finds and obtains a buyer for the real property, or an agent who locates property for a buyer or who finds a buyer for a property for which no listing exists and presents an offer to purchase to the seller. **(p)** “Subagent” means a person to whom an agent delegates agency powers as provided in Article 5 (commencing with Section 2349) of Chapter 1 of Title 9. However, “subagent” does not include an associate licensee who is acting under the supervision of an agent in a real property transaction.

2079.14 Listing agents and selling agents shall provide the seller and buyer in a real property transaction with a copy of the disclosure form specified in Section 2079.16, and, except as provided in subdivision (c), shall obtain a signed acknowledgement of receipt from that seller or buyer, except as provided in this section or Section 2079.15, as follows: **(a)** The listing agent, if any, shall provide the disclosure form to the seller prior to entering into the listing agreement. **(b)** The selling agent shall provide the disclosure form to the seller as soon as practicable prior to presenting the seller with an offer to purchase, unless the selling agent previously provided the seller with a copy of the disclosure form pursuant to subdivision (a). **(c)** Where the selling agent does not deal on a face-to-face basis with the seller, the disclosure form prepared by the selling agent may be furnished to the seller (and acknowledgement of receipt obtained for the selling agent from the seller) by the listing agent, or the selling agent may deliver the disclosure form by certified mail addressed to the seller at his or her last known address, in which case no signed acknowledgement of receipt is required. **(d)** The selling agent shall provide the disclosure form to the buyer as soon as practicable prior to execution of the buyer’s offer to purchase, except that if the offer to purchase is not prepared by the selling agent, the selling agent shall present the disclosure form to the buyer not later than the next business day after the selling agent receives the offer to purchase from the buyer.

2079.15 In any circumstance in which the seller or buyer refuses to sign an acknowledgement of receipt pursuant to Section 2079.14, the agent, or an associate licensee acting for an agent, shall set forth, sign, and date a written declaration of the facts of the refusal.

2079.16 Reproduced on Page 1 of this form.

2079.17 (a) As soon as practicable, the selling agent shall disclose to the buyer and seller whether the selling agent is acting in the real property transaction exclusively as the buyer’s agent, exclusively as the seller’s agent, or as a dual agent representing both the buyer and the seller. This relationship shall be confirmed in the contract to purchase and sell real property or in a separate writing executed or acknowledged by the seller, the buyer, and the selling agent prior to or coincident with execution of that contract by the buyer and the seller, respectively. **(b)** As soon as practicable, the listing agent shall disclose to the seller whether the listing agent is acting in the real property transaction exclusively as the seller’s agent, or as a dual agent representing both the buyer and



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seller. This relationship shall be confirmed in the contract to purchase and sell real property or in a separate writing executed or acknowledged by the seller and the listing agent prior to or coincident with the execution of that contract by the seller. **(c)** The confirmation required by subdivisions (a) and (b) shall be in the following form.

(DO NOT COMPLETE, SAMPLE ONLY)	is the agent of (check one): ☐ the seller exclusively; or ☐ both the buyer and seller.
(Name of Listing Agent)	
(DO NOT COMPLETE, SAMPLE ONLY)	is the agent of (check one): ☐ the buyer exclusively; or ☐ the seller exclusively; or
(Name of Selling Agent if not the same as the Listing Agent)	☐ both the buyer and seller.

(d) The disclosures and confirmation required by this section shall be in addition to the disclosure required by Section 2079.14.

2079.18 No selling agent in a real property transaction may act as an agent for the buyer only, when the selling agent is also acting as the listing agent in the transaction.

2079.19 The payment of compensation or the obligation to pay compensation to an agent by the seller or buyer is not necessarily determinative of a particular agency relationship between an agent and the seller or buyer. A listing agent and a selling agent may agree to share any compensation or commission paid, or any right to any compensation or commission for which an obligation arises as the result of a real estate transaction, and the terms of any such agreement shall not necessarily be determinative of a particular relationship.

2079.20 Nothing in this article prevents an agent from selecting, as a condition of the agent's employment, a specific form of agency relationship not specifically prohibited by this article if the requirements of Section 2079.14 and Section 2079.17 are complied with.

2079.21 A dual agent shall not disclose to the buyer that the seller is willing to sell the property at a price less than the listing price, without the express written consent of the seller. A dual agent shall not disclose to the seller that the buyer is willing to pay a price greater than the offering price, without the express written consent of the buyer. This section does not alter in any way the duty or responsibility of a dual agent to any principal with respect to confidential information other than price.

2079.22 Nothing in this article precludes a listing agent from also being a selling agent, and the combination of these functions in one agent does not, of itself, make that agent a dual agent.

2079.23 A contract between the principal and agent may be modified or altered to change the agency relationship at any time before the performance of the act which is the object of the agency with the written consent of the parties to the agency relationship.

2079.24 Nothing in this article shall be construed to either diminish the duty of disclosure owed buyers and sellers by agents and their associate licensees, subagents, and employees or to relieve agents and their associate licensees, subagents, and employees from liability for their conduct in connection with acts governed by this article or for any breach of a fiduciary duty or a duty of disclosure.